

The History of Participatory Fisheries Management in Malawi by Dr John Wilson

In 1992 with the referendum voting in favour of democratic (multi-party) government and the concomitant decline in Dr Kamuzu Banda's ruthless 30 year dictatorship, the devolution of power to the communities to manage their natural resources became possible.

Also in 1992, the MAGFAD – GTZ project on Lakes Chilwa and Chiuta was evaluated as “exemplary” by the BMZ Evaluation Unit, and extended for a further 3 years. The area of operation was also extended to include the South-east Arm of Lake Malawi and Lake Malombe.

The FAO Chambo project had highlighted the collapse of the Chambo fishery on Lake Malombe, from 5-8,000 tons p.a. in the 1980's to about 200 tons p.a. in 1992 due to the introduction of the small-meshed open-water seine net, the Mkacha.

In 1992 a referendum voted in favour of democratic multi-party politics, bringing to an end the dictatorship of President Kamuzu Banda, when all power was vested in him, and the concept of community management of natural resources was prohibited.

At the same time, an ODA Fisheries adviser, Simon Bland had carried out a study of community fisheries management prior to coming to Malawi, and identified a few examples from South-east Asia, but none in Africa.

Lake Malombe

In 1993 MAGFAD had decided to develop PFM on Lake Malombe but in order to obtain a consultant with experience in CBNRM in Africa MAGFAD had to go to the wildlife sector. Dr RHV Bell had experience of community participation in wildlife management in the Luangwa Valley in Zambia. Richard Bell's counterpart was Mr Steve Donda, now Deputy-Director of Fisheries. They spent 3 months working on Lake Malombe. Meetings were held with the Traditional Authorities and the fishermen at all the major fish landings around this formerly rich lake.

A meeting was also held with the Fisheries department to present the different scenarios for community fisheries management:

“Co”-management, whereby the fisheries regulations are determined and enforced by the government, which “consults” with the fishermen.

And full community fisheries management, whereby the fishing community determine the regulations and enforces them, with the support of the Fisheries department.

Needless to say, the Director of Fisheries, Mr Mkoko, was not prepared to devolve any power to the user group / primary stakeholders.

Most unfortunately, Richard Bell made a number of critical omissions.

He proposed “**Beach Village Committees**” (BVCs), consisting of 10 members (but of what?)- as opposed to a Club open to all those engaged in the fishing industry, as subsequently stipulated in the **Fisheries Conservation and Management (Local Community Participation) Rules, 2000:**

7. A Committee shall consist of persons who are engaged in any aspect of the fishing industry associated with a fishing beach.

8. For proper management of the affairs of a Committee, each Committee shall form a subcommittee etc.

Thus, it was left to the chief to appoint the 10 members of these BVCs. These members of the BVC did not represent those engaged in the fishing industry, i.e. the primary stakeholders, not having been elected by them, and these stakeholders were not members of the BVC. Needless to say, the chief's appointments were mainly members of his own family, usually with his wife as treasurer, and in most cases not even engaged in the fishing industry, thus having no knowledge or experience of the fishery, and no stake in it. Thus these "BVCs" were totally useless with respect to the conservation and management of fisheries resources within the area of the BVC.

This system was perpetuated by NARMAP, who further corrupted the BVCs by paying "sitting allowances" for attendance at quarterly project meetings. Mr Jaimie Thompson of ARD Inc. in his study for USAID was astonished that people would be chosen as members of the BVC merely so that they could collect a K150 sitting allowance.

Bell crucially omitted any provision for a **Fishery Management Plan**, which is fundamental to Participatory Fisheries Management in that, in addition to guiding the actions of the BVCs and the Association, it provides the very basis for a **Fisheries Management Agreement** between the Director of Fisheries and the Association, conferring the association with the legal power to conserve and manage the fishery.

Furthermore, there was no provision for a **Constitution** to govern the functions of the BVCs and the Association, and provide a basis for the association to **register as a legal entity**, under the Trustees Incorporation Act 1966, and thus able to enter into legal contracts or a Fishery Management Agreement with government.

However, he did establish the fact that the traditional authorities had no jurisdiction over the lake i.e. the fishery. This was on the evidence of TA Mponda, and the fiasco of TA Chowe's meeting with the fishermen.

All this is a reflection on the very limited knowledge or experience of what is necessary for effective community natural resource management.

NARMAP succeeded MAGFAD, from 1996 to 2002 with the objective of developing community fisheries management in Lake Malawi and Lake Malombe. They ended up only working on Lake Malombe, failing even to address the conflict between the commercial fishery and the artisanal fishermen in the South-east Arm of Lake Malawi. They failed dismally to develop effective and sustainable conservation and management of even the Lake Malombe fishery. They failed to develop a constitution for the fisheries association; the BVCs consisted of only 10 members, the majority of whom were not engaged in the fishery, by paying a sitting allowance of K150 for quarterly meetings they corrupted the BVCs, they did not facilitate the development of a fishery management plan. They did nothing. They did not even involve the Fisheries Field Assistants in extension; instead they concentrated their efforts on a radio programme "Usodzi wa Lero", partly in

the spurious interests of economy, mainly because it required very little effort on the part of the GTZ staff.

The **Lake Malombe Fishermen's Association** was formed in 1997, its membership apparently elected by the BVCs. This Association did not determine the fishery regulations, nor, I believe, were they even consulted.

Questions about the legality of BVCs' actions in punishing offenders, and later confusion concerning the law enforcement roles of BVCs, the Association and the Department of Fisheries, led to a reduction in enforcement activity (Hara, Donda and Njaya, 2002), although the Association did continue to bring cases to the magistrate's court for prosecution. (Note: when questioned by Dr Tracy Dobson, a lawyer in Fisheries and Wildlife at Michigan State University, the Magistrate in Mangochi could not remember a single case relating to offences against the Fisheries regulations being brought to his court.)

By 2000 the Department of Fisheries and technical advisers of the GTZ-financed National Aquatic Resources Management Project (NARMAP) felt that the Lake Malombe initiative had lost momentum, with a significant slackening in compliance with the management rules. They attributed this weakness to a drift in the composition of BVC subcommittees away from fishers¹, and also to institutional failures within the association. The response was, in hindsight, hasty and perhaps excessive. New BVC elections were facilitated in May 2000, and these are understood to have been fairly successful. The association was "restructured" about the same time – in effect disbanded and replaced by a new institution named the **"Lake Malombe Fisheries Management Unit" (LMFMU)** and dominated by non-fishing traditional leaders. The original association committee did not object to this change: "We thought we would let the Traditional Authorities find out how difficult this job was." In addition, new institutions (Area Fisheries Committees) were formed at Traditional Authority level, intermediate between the BVCs and the LMFMU, and an over-arching district-level **Mangochi District Fisheries Association** was created under the **chairmanship of T.A. Mkanjira**.

The new institutions were imposed, with little consultation, in what is now seen as a lapse in participatory practice. The net result is that they were never functional. One representative of the LMFMU and four representatives of Mponda Area Fisheries Committee were questioned at Mpima village on January 28th 2005. They said that after their inaugural meetings in 2000, neither of these institutions has met since: **"And we do not think we shall ever meet again."** Ordinary BVC members² who were not members of these committees had not heard of them, much less of the Mangochi District Fisheries Association. In effect, the superstructure of PFM in Lake Malombe has been removed, although the BVCs remain. However, the degree of representation of fishers on the BVC subcommittees remains low (e.g. three of ten members in each of the two Malombe / Upper Shire BVCs met during this mission) and it is doubtful that the majority of fishers see the BVCs as their chosen representatives. Furthermore, the level of fishing effort in the *nkacha* seine fishery is probably too high to permit recovery of either the *kambuzi* stock or the macrophyte flora on which the *chambo* depend.

As further evidence of the Fisheries Department's opposition to participatory fisheries management, Mr Friday Njaya, then Divisional Regional District Officer based in Mangochi, proceeded to draft new regulations for Lake Malombe in collaboration with a selection of colleagues from the District Assembly, including the Magistrate. He claimed to have "consulted" the fishermen, but this is highly doubtful. Furthermore, these regulations were never made public.

The Lake Malombe fishery remains unmanaged, and yields remain small. Equally, there is no management of the fishery in the South-East Arm of Lake Malawi, with a severe fall in yield. Many of the fishermen have migrated to Lake Chilwa or to Lake Malawi in Nkhotakota, especially Liwaladzi

Lake Chiuta.

When MAGFAD embarked on the development of community fishery management on Lake Malombe, a conscious decision was taken by the Team Leader, Thomas Gloerfelt Tarp, not to make any input in this area to Lake Chiuta, although it was the overfishing of juvenile *Oreochromis* on Lake Chiuta by immigrant Nkacha fishermen observed during the MAGFAD evaluation, that led to community fisheries management being included as a major activity in the extension of the project. I suspect this was directed at me, but it turned out to be extremely fortuitous!

In 1992, there was a severe drought, reducing the level of Lake Chilwa and drying up the northern marsh. A large number of Nkacha fishermen moved from Lake Chilwa to Lake Chiuta and made huge catches of *Oreochromis* juveniles with their small meshed open water seine nets, devastating the *Oreochromis* gill net fishery operated by the resident fishermen. These open-water seine nets also damaged the gill nets set by the local fishers, and removed the macropytes on which the productivity of the lake is largely based. They also polluted the lake through poor sanitation, and interfered with the local women. A meeting of all fishermen, both resident and immigrant, was called by the Traditional Authorities of Chikweo and Ngokwe and the Malawi Congress Party to resolve this conflict, and it was decided that Nkacha nets should be banned on Lake Chiuta. The immigrant Nkacha fishermen then bribed the MCP Chairmen and the Chiefs, and continued fishing.

One or two chiefs refused the bribes offered, and revealed what had taken place. The matter was reported to the District Commissioner for Machinga and the Senior Fisheries Officer in Zomba, Mr Manase Chiumia, but they took no action, thus destroying any credibility they may have had with the resident fishermen of Lake Chiuta. The traditional authorities of Lake Chiuta also lost all credibility, and the resident fishermen then knew that they had to deal with this problem themselves.

These resident fishermen then gained some knowledge of the promotion of community fisheries management on Lake Malombe, which is nearby, mainly from the meetings held by Dr Richard Bell with the fishermen early in 1993, and they proceeded to form their own Beach Village Committees and a **Lake Chiuta Fisheries Association**, with a membership of all the resident primary stakeholders. Significantly, in contrast to BVCs and Fisheries Associations developed by the Department of Fisheries, no chiefs were included, with the exception of two village headman, whose membership was solely on the basis of their being fishermen, and not as chiefs. Furthermore, unlike the BVCs created on Lake Malombe and subsequently on Lake Chilwa, the BVCs were all inclusive, and this membership then elected their committees by secret ballot (by a very ingenious process which did not depend on being literate!). All members paid a membership fee twice a year to their BVC; this fee was then MK50, and it not only provide funds for the operation of the BVC, it also conferred a sense of membership. The BVCs in turn paid an annual membership fee to the Association. Meetings of the BVC sub-committees were held regularly, and there was an annual general meeting of the Association, which was open to all members, and at which elections of the Association office bearers, including the Chairman, were held, again by secret ballot.

On 19th May 1995 another meeting was convened to address the issue of the Nkacha destroying the *Oreochromis* fishery; in attendance was Senior TA Kawinga, TA Ngokwe and TA Chikweo, the Member of Parliament, and representatives from the District Assembly, Police and Department of Fisheries, fishers and the general community. Again it was agreed that the Nkacha should be banned from Lake Chiuta, in fact, Chief Kawinga announced the banning of seine nets in Lake Chiuta for 70 years! The following day, 20th May 1995, local fishers started chasing the seine net fishers away and burnt down their houses (temporary grass shelters). The whole operation took five days, at the end of which all seine net fishers had left. A very strong enforcement programme followed, confiscating many Nkacha nets and imposing punitive fines.

A number of Malawian Nkacha fishermen transferred their operation to the Mozambique shore, continuing to operate in the Malawian waters of Lake Chiuta. These nets were also confiscated. On one occasion a fisherman accompanied by an armed Mozambican came to retrieve his net. The members of the Fisheries Association, with great bravery, disarmed the Mozambican and took him to the Police. This is a measure of how highly the Lake Chiuta fishermen value their fishery.

Thus the *Oreochromis* fishery was restored, together with the macrophytes on which the productivity of the fishery is based.

In 2002 GVH Njela was suspected of having been compromised by the Nkacha fishermen to support their return to fish Lake Chiuta. The Fisheries Association went to his house to beat him, but he ran away. Instead they caught and beat his wife. They then destroyed the grass fence around his house and pulled away the poles holding up the roof, thus dropping it.

In 2009 TA Ngokwe died and a successor was appointed. Before he was confirmed as TA he let it be known publicly that he intended to reopen Lake Chiuta to the immigrant Nkacha fishermen. The Lake Chiuta Fisheries Association went to his house one evening and said they wanted to talk to him. When he had come out of his house, they beat him with sticks. Subsequently, his appointment was rescinded.

In 2002 **IUCN –ROSA (Regional Office for Southern Africa) through the NETCAB CBNRM Best practices Project** decided to support the Lake Chiuta Collaborative Fisheries Management Programme.

A “workshop” was held at Boadzulu Holiday Resort in Mangochi from 21st -23rd August, 2002. There were 54 participants drawn from both Malawi and Mozambique, including District Commissioners, local chiefs, politicians, Fisheries Officers, and “officials” from the Ministry of Natural resources and Environmental Affairs, Lilongwe, none of whom were primary stakeholders depending on the Lake Chiuta fishery for their livelihood. There were however 12 Malawian fishermen.

An exchange visit by the Lake Chiuta Community Fisheries Programme to Lake Kariba Community Fisheries Programme on Lake Kariba in Zambia was undertaken from 13th to 22nd September. There were only 3 members of the Lake Chilwa Fisheries Association, i.e. the primary stakeholders, and 5 Traditional Authorities, reflecting the Fisheries Department’s strategy of undermining the management of the fishery by the community through “Indirect Rule”, and the District Commissioner for Machinga and 4 members of the Fisheries Department, none of whom had done anything about the bribery of the MCP officials and chiefs by the seine net fishers.

This exchange visit was followed by another “workshop”, from 7th to 10th October 2002 at the Malawi College of Fisheries at Mpwepe. There were a total of 46 participants including only 3 representatives of the Lake Chiuta BVCs and Fisheries Association, 3 Traditional Authorities, and 10 Fisheries Department staff. The “workshop” was facilitated by members of the Fisheries Department (Mr Friday Njaya, Divisional Fisheries Officer (South), Mr F.E. Mauwa, and Mrs Jackeline Kazembe). Mr Orton Kachijika, National extension Coordinator, Mr Nixon Massi, Fisheries Extension Assistant for Lake Chiuta, GVH Chikumba, fish recorder, Lake Chiuta, Mr. PG Chimdenga, and Mr S. Wemba, Fisheries Extension Assistant were also in attendance. The workshop was officially opened and closed by Mr Sam Mapila, the Director of Fisheries.

At this workshop Senior Chief Kawinga’s representative noted that at Lake Kariba the village committees, and not the Fisheries department, collect licences (i.e. licence fees). He noted that if a similar approach was adopted in Malawi, then revenue collected through licences would be kept in Machinga District “for development work” (note: not the management of the fishery by the BVCs!), instead of the revenue going to the Treasury in Lilongwe.

1. No comment was made by any of the participants, notably the senior officers of the Fisheries Department. Either through ignorance or simply denial, the fact that the **Fisheries**

Conservation and Management (Local Community Participation) Rules, 2000 (two years earlier) states:

PART V – FISHING LICENCES

15. No person shall fish in fishing waters falling within the jurisdiction of a Beach Village Committee unless he is authorised to do so by a licence or written authority of a Beach Village Committee.

16. Written authority of a Beach Village Committee shall be in a form set out in the Second Schedule.

This legislation is crucial in that it not only gives the Beach Village Committee **control of access** to the fishery, it makes provision for funding the operation of the Beach Village Committee.

The Rules go on to state:

17. Unless expressly authorised by the Director in writing, large-scale commercial fishing within areas of the jurisdiction of a Beach Village Committee is prohibited.

Were this to be enforced in the South-East Arm of Lake Malawi by viable Beach Village Committees, the *Oreochromis* breeding grounds and the juveniles would be protected, and the fishery might recover, but this has never happened.

The main conclusion of this workshop was to introduce a new intermediary body between the Lake Chiuta BVCs and their Association, an **Area Fisheries Association (AFA)**, chaired by the Traditional Authority, and including the District Assembly Councillor, Group Village Headmen, and Fisheries Officers as ex-officio members.

A fourth body was suggested. This was an overall management body called the **Lake Chilwa Fisher's Association** whose membership would include Senior Chief Kawinga, Chief Ngokwe, Chief Chikweo, the Machinga District Commissioner, and the District Fisheries Officer.

Thus IUCN –ROSA sought to “support” the Lake Chiuta Collaborative Fisheries Management Programme by imposing indirect rule by the chiefs, and undermine the powers primary stakeholders, i.e. the user group, and in complete contradiction to the legislation.

Fortunately, the following year, in 2003 I was tasked by Compass 1 with drawing up the Constitution for the Lake Chiuta Fisheries Association, and, with the unanimous agreement of the members of the Fisheries Association I was able to throw all this out. Subsequently under Compass 2 I was able to provide all the BVCs on Lake Chilwa and Lake Chiuta with BVC fishing permits with which they could licence the fishermen.

Lake Chiuta remains the best example of community fisheries management in Malawi, and possibly in Africa.

Lake Chilwa and Mpoto Lagoon.

In 1995, when Lake Chilwa dried, the Department of Fisheries created a number of River Village Committees to protect the residual fish stocks in the deep pools in the river, in particular, the *Oreochromis shiranus*. These RVCs were composed of 10 members appointed by the Group Village Headman of that area of the river. They had no legal status, no constitution, and no management plan. In due course the Department of Fisheries appointed a Lake Chilwa Fisheries Association, composed entirely and exclusively of traditional authorities, mainly TAs, none of whom were engaged in the fishing industry on Lake Chilwa, and most of whom did not even live near the lake.

This Fisheries Association never met as an association, and had no interaction with the RVCs. They had no terms of reference, neither a constitution to govern the work of the

association, nor a management plan. As far as I am aware they performed no function whatsoever regarding the conservation or management of the fishery. This presumably is exactly what the Fisheries Department desired.

From July 2003 to January 2004, under Compass 1, I developed the 53 Beach Village Committees on Lake Chilwa and Mpoto Lagoon, and facilitated the formation of five Fisheries Associations and assisted these associations to draft their constitutions and fishery management plans. I also assisted the Lake Chiuta Fisheries Association to finalise their fisheries management plan and constitution.

From April to July 2006, I finalised the constitutions of the five Lake Chilwa and Mpoto Lagoon and facilitated their legal registration. I also drafted a tri-district fishery management agreement based on a joint participatory fisheries management plan.

Nkhotakota

From May to November, 2006 I developed participatory fishery management in Nkhotakota District, with the creation of Beach Village Committees and Fisheries Associations for Lake Malawi north of the Bua River, Lake Chikukutu, and the Bua River.

Evaluation of Participatory Fisheries Management in Malawi

From September 2008 to February 2009, I evaluated participatory fisheries management in Malawi, drafted a chapter on participatory fisheries management for the Fisheries Field Extension Manual (which has never been acknowledged by the Department of Fisheries, let alone disseminated), developed a participatory monitoring and evaluation system, and negotiated a Fisheries Management plan for Lake Chilwa and Mpoto Lagoon, which was eventually accepted by the Director of Fisheries, Mr Bulirani in return for funding his trip to Rome.

Since the conclusion of the Fisheries Management Agreement based on this Lake Chilwa Fisheries Management Plan, the Fisheries Associations of Lake Chilwa have vigorously prosecuted offenders against their regulations, especially those related to the close season for seine nets, especially Nkacha, and “gauze wire” i.e. mosquito netting seine nets, and the cutting of Mululu grass.

LEGISLATION

The Fisheries Conservation and Management Act, 1997

The Fisheries Conservation and Management Act , 1997 Part 111 made provision for local community participation in conservation and management of fisheries in Malawi; and

8.-(1) For proper management of fisheries, the Director may enter into a fisheries management agreement with a fisheries management authority providing for –

(a) a management plan; and

(b) assistance to be provided by the Department of Fisheries.

“Fisheries management authority” was defined as any local community organisation established for the purposes of promoting local participation in the conservation and management of fisheries in Malawi.

Note: only one fisheries management agreement for only one fishery has ever been entered into by the Director of Fisheries. In 2003/ 2004 under Compass I created 5 Fisheries Associations covering Lake Chilwa and Mpoto Lagoon. These associations were registered with the Registrar General under the Trustees Incorporation Act to give them a legal identity, and thus empower them to enter into a legal agreement with government. I also facilitated the development of management plans for each association, which I then combined in one management plan for Lake Chilwa and Mpoto Lagoon. In November 2008 I presented this Lake Chilwa fishery management plan to the Director and his staff at Mpwepwe, and at least twice more in Lilongwe, incorporating the major revisions the Director Mr Bulirani demanded. He clearly could not accept that this was the Fisheries Associations’ own fishery management plan, and did his best to change it out of all recognition, with no logic. Compass finally induced Mr Bulirani to enter into the fisheries management agreement with the Lake Chilwa Fisheries Associations in March 2009 after Compass had funded Bulirani’s trip to Rome, and, I believe, China.

The Fisheries Conservation and Management (Local Community Participation) Rules, 2000 were crucial to the development of participatory fisheries management:

They set out the criteria for membership of the Beach Village Committee, confining it to “persons engaged in fishing”, and further stating, “ A Committee shall consist of persons who are engaged in any aspect of fishing industry associated with a fishing beach.” This acknowledged the importance of management by the user group. It also made way for excluding the Chief from assuming chairmanship of the committee and appointing his own family and cronies to the committee.

The rules also stated, “For proper management of the affairs of a Committee, each Committee shall form a subcommittee, which shall consist of the following office bearers-

(a) Chairperson, etc.

This established that the BVC was composed of all persons engaged in any aspect of the fishing industry, thus dispelling the previous situation where the BVC comprised of only the 10 office bearers, and furthermore made it clear that it was the wider BVC who appointed the sub-committee, including the chairman. In due course this in fact was done by elections, and by secret ballot.

The rules also stated:

6.-(1) A committee shall have the responsibility for the conservation and management of fisheries resources within its area of jurisdiction. Thus the fisheries department was reduced to a supporting role.

The rules further empowered the BVC as follows:

(2) A Committee shall have power to-

(d) enforce fishing regulations pertaining to-

- (i) fish species;
- (ii) fish size;
- (iii) close season;
- (iv) fish sanctuaries (closed areas)
- (v) gear size, type, and stowage thereof;
- (vi) methods of fishing;
- (e) enforce conditions specified in licences; and
- (f) seize fishing vessels and fishing gears which are reasonably believed to have been used in contravention of the Fisheries conservation and Management Act:

Note: the original draft contained a provision for the regulations to be determined by the BVC, but this was pulled out, presumably by the Director, before it was presented to Parliament. Thus the BVCs and associations were denied full responsibility for the conservation and management of their fishery.

Note2: the area of jurisdiction of a BVC is not defined. In practice, this has been taken to coincide with the area of the Group Village Headman that the BVC is situated in.

The area of a Fisherman's Association is defined as being the same as that of the corresponding "fishing district", which is also not clear. In practice, Fisheries Association areas have firstly to conform to the areas of the **Traditional Authority**, and secondly be limited to the distance that all members can travel by bicycle to attend Annual General Meetings, Committee meetings, elections of office bearers, etc.

The Rules also state that the office bearers of a subcommittee shall be appointed honorary fisheries officers under section 4 (1) of the fisheries conservation and Management Act; this has never happened.

A very important element of the Rules was the provision that no person shall fish in fishing waters falling within the jurisdiction of a Committee unless he is authorised to do so by a licence or written authority of a Committee, and the Rules included the format for a BVC Fishing Permit.

Thus the BVC was given the power to control or limit access to the fishery, which is key to the conservation of any natural resource. Furthermore, by charging for the fishing licence or permit, this now gave the BVC a source of revenue with which to function. Other sources of revenue include annual BVC and Association membership fees and fines.

However, the Fisheries Department did nothing to promote the BVC fishing licences or permits, which was left to Compass. When a Chichewa version of the BVC fishing licence was presented to the Fisheries Department by myself under Compass, in the belief that this was more appropriate, this was ignored and eventually rejected by the Fisheries Department. The Fisheries Department's antipathy to this very important piece of legislation and PFM in general was further demonstrated when Mr Friday Njaya, the expert on community fisheries management in Fisheries Headquarters,

openly and blatantly denied any knowledge of this BVC Fishing Permit in a meeting convened by the WorldFish Centre in Zomba!

The Rules also stated,

17. Unless expressly authorized by the Director in writing, large-scale commercial fishing within the areas of jurisdiction of a Committee is prohibited. This ruling has never been implemented, although it is echoed in the Chambo Restoration Policy 2003.

National Fisheries and Aquaculture Policy, October 2001.

2.1 The Mission Statement of the Department states:

The Fisheries Department is the leader in collaborative management and sustainable use of aquatic resources in Southern Africa. *Is the permanent and total loss of the Lake Malombe Chambo fishery of 5-8,000 tons p.a. evidence of this?*

2.3 General Objectives.

2.3.4 To foster greater community involvement in resource management to improve the effectiveness and appropriateness of management initiatives.

2.3.5 To develop the institutional capacity of the Fisheries sector.

The Fisheries Department has done nothing. In fact, the opposite, by imposing the chiefs on the BVCs.

3.1.1 Guiding Principle

The need to strengthen the extension service in order to implement an effective participatory management of the fisheries has been recognised *(but totally ignored)*

3.1.2 Extension goal

To support local communities in the development of capture fisheries. *(what support? None)*

Objective 1.1 To mobilise communities to participate and play an active role in fisheries management.

Strategies 1.1.1 Facilitate formation of fisheries management institutions e.g. Beach Village Committees (BVCs). *No BVCs established in the South-East Arm of Lake Malawi, the most important fishery in Lake Malawi. The BVCs in Lake Malombe remain totally ineffective.*

3.3 Participatory Fisheries Management

3.3.1 Guiding Principle.

Participatory fisheries management has proved to be the most appropriate method to manage the fish resources in the lakes of Malawi. *A very strong and appropriate statement, but there is no evidence on the ground that the Fisheries Department endorses this.*

Objective 3.1 To achieve the active participation of local fishing communities in the management of fish resources.

Strategies:

3.1.2 Promote the formation of local fisheries management authorities (e.g. BVCs) and higher level entities.

3.1.3 Strengthen the capacity of local fisheries management authorities to enable them to participate effectively in fish resource management.

3.1.6 Elaborate together with local fisheries management authorities appropriate fisheries management plans (objectives, measures and regulations in line with the Fisheries Act).

Note: to this I would add, monitor and evaluate the fishery to determine if the management plan is working or not, and if not, to review it. This is known as adaptive management, which applies particularly to a resource which is not quantifiable.

Objective 3.2 To provide legal instruments and procedure for the participation of local fisheries management authorities in the management of fish resources.**Strategies:**

3.2.1 Conclude agreements for fisheries management plans between the Department of fisheries and local fisheries management authorities. *Only one fisheries management agreement has ever been concluded.*

3.2.2 Support local fisheries management authorities to participate in enforcement, research and monitoring activities.

3.2.3 Review fisheries subsidiary legislation in consultation with other relevant organisations.

The National Fisheries and Aquaculture Policy Supplement : Chambo Restoration Policy was approved by the Cabinet Committee on Natural Resources and the Environment Meeting of 23.7.2003 in agriculture Conference Room, ten years ago.

The objective was to restore the Chambo fishery of Malawi to its maximum sustainable yield by 2015, and to supplement food security needs by enhancing Chambo production through aquaculture.

The guiding principle was that to better manage the fishery exclusive access rights need to be given to “traditional user groups”.

The **Strategies** were stated as follows:

a. The **Chambo Restoration Strategy Plan 2002-2015** shall become instituted as part of the Department of Fisheries Sector Investment program, included in the National Strategy for Sustainable Development and in the Poverty Reduction Program.

b. **Exclusive fishing zones shall be declared** whereby Beach Village Committees will have exclusive fishing access rights and shall, by legislation, be empowered to restrict entry and to protect these areas.

c. **Sanctuaries or protected areas** shall be established to preserve important Chambo breeding and nursery grounds. **Artificial reefs** will be promoted as “silent policemen” and as community culture based enhancement devices. Private sector initiatives should be encouraged provided they do not impinge on the welfare of the poorer user groups.

f. To finance the Chambo Strategy a review shall be undertaken of the fish licence fees system to institute a fair price scheme (?). Revenue shall accrue to the Fisheries fund for implementation of the Chambo Strategy. In addition the **Environment Fund** shall be established based on “polluter pays principles” (?). In part, some funds shall be earmarked for implementing the Chambo strategy.

Fine words, but NOTHING has ever been done. None of these Strategies have ever been implemented by the Fisheries Department, and the Chambo fishery remains extremely depressed.

The Department of Fisheries can only be described as totally dysfunctional and useless, along with almost all other government departments, notably the Department of Forestry.